

Calendar line 4

Motion For Order to Comply with Deposition Subpoena

Case Number: 23CV415280

Haghighi v. City of Mt View et al.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The Motion of Defendants Mountain View Los Altos Union High School District, Nellie Meyer, Kip Glazer, Marti McGuirk, Achilles Walker, and the other moving Defendants for an order compelling compliance with a deposition subpoena for production of business records and for monetary sanctions came on for hearing before the Court. Having considered the motion, supporting papers, opposition, if any, reply, the records and files in this action, and the arguments of counsel, the Court rules as follows:

I. Plaintiff Has Placed His Mental and Emotional Condition at Issue

Plaintiff alleges that Defendants' conduct caused him substantial mental and emotional injuries. His operative complaint affirmatively alleges anxiety, stress, psychological discomfort, impaired sleep, emotional trauma, embarrassment, helplessness, isolation, and other claimed psychological and emotional harm. Plaintiff further alleges that this emotional and psychological harm constitutes damages resulting from Defendants' alleged conduct.

By affirmatively placing his mental and emotional condition at issue, Plaintiff has placed the nature and extent of those conditions, their causation, and the treatment he received for them at issue in this litigation.

Evidence Code section 1016, subdivision (a), provides that there is no privilege as to a communication relevant to an issue concerning the patient's mental or emotional condition if that issue has been tendered by the patient. The Court therefore finds that Plaintiff has tendered his mental and emotional condition as an issue in this action and that the psychotherapist-patient privilege does not preclude discovery of treatment records that are relevant to the claims and damages Plaintiff has placed at issue.

The Court does not find that Plaintiff has thereby waived any and all privacy protections with respect to every conceivable medical or psychological record. Rather, the production ordered below is limited to responsive records within the scope of the subpoena and relevant to the claims and issues Plaintiff has placed before the Court.

II. The Subpoena Was Properly Served and Has Not Been Answered

Defendants served a deposition subpoena for production of business records on Jeong Therapy Group seeking Plaintiff's treatment records relating to the claims asserted in this action. The subpoena identified December 31, 2025 as the compliance date.

Plaintiff subsequently informed Defendants that he had directed Jeong Therapy Group not to produce the requested treatment records absent a specific court order. Jeong Therapy Group thereafter did not produce the responsive records, serve objections, or provide a statement of inability to comply.

The Court finds that Defendants made the required efforts to meet and confer before bringing the motion. The record further establishes that Defendants attempted for an extended period to obtain compliance before seeking judicial intervention. The motion papers reflect that the efforts to obtain the records extended over more than two months, including repeated representations that the records would be produced before Plaintiff ultimately directed Defendants to seek a court order.

III. An Order Compelling Production Is Warranted

A deposition subpoena for production of business records requires the custodian of records to produce the documents specified in the subpoena or otherwise respond as required by law. Where responsive documents are not produced and no valid objection or statement of inability to comply has been served, the requesting party may seek an order compelling compliance.

Here, the Court finds that the requested treatment records are relevant to issues Plaintiff has affirmatively placed in controversy, including his allegations of mental and emotional injury and the nature, extent, and causation of those claimed injuries.

The Court further finds that Plaintiff's direction to Jeong Therapy Group not to comply with the subpoena, coupled with the absence of any timely objection or other legally sufficient response from the subpoenaed entity, has prevented Defendants from obtaining relevant discovery.

Accordingly, the motion to compel is **GRANTED**.

IV. Monetary Sanctions

Defendants also seek monetary sanctions in the amount of \$4,950. Defendants represent that this amount includes approximately 16.5 hours of attorney time associated with preparing the present motion and a prior ex parte application seeking to have the motion heard on an expedited basis, as well as an anticipated three hours to respond to a reply brief.

The Court finds that monetary sanctions are appropriate. Plaintiff placed his mental and emotional condition directly at issue, yet thereafter prevented the subpoenaed treatment provider from producing records relevant to those claims. The Court does not find that Plaintiff acted reasonably in requiring Defendants to obtain a court order to secure production after the extended efforts to obtain the records voluntarily.

The Court nevertheless finds the requested amount excessive under the circumstances presented. There has been substantial motion practice in this action, and the Court finds that some duplication of effort has occurred. Although Defendants spent more than two months attempting to obtain compliance, the Court finds that **nine hours** of attorney time is a reasonable amount to compensate Defendants for preparation of the present motion. The Court does not award fees for the prior ex parte application to advance the hearing, particularly because the Court denied that application. The Court also does not award the three hours requested for preparation of a response to a reply brief, because Plaintiff did not file a reply.

Accordingly, the Court finds that sanctions in the amount of:

9 hours × \$300 per hour = \$2,700

are reasonable and appropriate.

Pursuant to Code of Civil Procedure section 2025.480, subdivision (j), the Court therefore awards Defendants monetary sanctions in the amount of **\$2,700** against Plaintiff.

V. Disposition

The Court therefore ORDERS as follows:

1. Defendants' Motion to Compel Compliance with Deposition Subpoena for Production of Business Records is **GRANTED**.
2. Jeong Therapy Group shall comply with the deposition subpoena and produce the responsive treatment records within **[10] days** of service of this Order, or within such other period as the Court specifies.
3. The production shall be limited to records responsive to the subpoena and relevant to Plaintiff's claims and allegations concerning his mental and emotional condition, treatment, and claimed injuries arising from the conduct alleged in this action.
4. Monetary sanctions in the amount of \$2,700 are awarded to Defendants as set forth above.
5. The sanctions shall be paid to Defendants, through their counsel of record, within **30 days** after service of notice of entry of this Order.
6. Nothing in this Order shall be construed as requiring disclosure of records outside the scope of the subpoena or records unrelated to the mental and emotional injuries Plaintiff has placed at issue in this action.

Calendar Line 5

Vortex Industries' Motion to Compel Responses to Special Interrogatories

Case: 25CV474504

ABIOYE v. CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 5: VORTEX INDUSTRIES' Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant served the subject discovery on Plaintiff on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve code-compliant responses.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff has submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for the moving Defendant.

Counsel for Defendant represents that no code-compliant responses to the subject discovery were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff has failed to provide timely, code-compliant responses to the discovery at issue.

Accordingly, **VORTEX INDUSTRIES' Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE is GRANTED.**

Plaintiff is ordered to serve verified, code-compliant responses to the subject discovery, without objections to the extent objections have been waived by Plaintiff's failure to timely respond, within **[30] days** after service of notice of entry of this Order.

VI. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the discovery necessitated the filing and hearing of this motion. Monetary sanctions are therefore warranted pursuant to the applicable provisions of the Code of Civil Procedure.

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards of the full amount requested for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour**, together with any recoverable filing fee, to be a reasonable amount attributable to this motion. Accordingly, Defendant **VORTEX INDUSTRIES** is awarded **\$375.00 in monetary sanctions** against Plaintiff.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.
IT IS SO ORDERED.

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Calendar Line 6
Vortex Industries' Motion to Compel Responses to Request for Production of Documents,
Set One
Case: 25CV474504
ABIOYE v. CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00
a.m. in Department 16, the Honorable Matthew S. Harris presiding:

**Line 6: VORTEX INDUSTRIES' MOTION TO COMPEL RESPONSES TO REQUEST
FOR PRODUCTION OF DOCUMENTS, SET ONE**

Defendant served Plaintiff with Requests for Production of Documents, Set One, on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve code-compliant responses to the Requests for Production. Plaintiff also has not established that he served code-compliant responses on counsel for Defendant.

Under Code of Civil Procedure section 2031.300, a party who fails to timely serve a response to a demand for inspection, copying, testing, or sampling waives any objection to the demand, including objections based on privilege or work product, unless the court, on motion, permits the responding party to assert such an objection.

The Court finds that Plaintiff has failed to timely respond to the Requests for Production and has not established good cause for permitting objections at this time. Accordingly, any objections to the Requests for Production that were waived by Plaintiff's failure to timely respond are deemed waived.

**Defendant VORTEX INDUSTRIES' Motion to Compel Responses to Requests for
Production of Documents, Set One, is GRANTED.**

Plaintiff shall, within **30 days after service of notice of entry of this Order**, serve verified, code-compliant responses to each of the Requests for Production, without objections to the extent objections have been waived.

To the extent a response states that responsive documents or other items will be produced, Plaintiff shall produce the responsive documents, tangible things, and electronically stored information in accordance with the requirements of Code of Civil Procedure section 2031.280.

If Plaintiff asserts that no responsive documents or other items exist or are within his possession, custody, or control, his response shall so state in a manner that complies with the applicable provisions of the Code of Civil Procedure.

VII. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Production necessitated Defendant's motion. Monetary sanctions are therefore warranted pursuant to Code of Civil Procedure section 2031.300(c).

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards based upon the full amount of time claimed for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour** to be a reasonable amount attributable to this motion. Accordingly, Defendant **VORTEX INDUSTRIES** is awarded **\$375.00 in monetary sanctions against Plaintiff Adedayo Abioye**.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

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Calendar Line 7

Vortex Industries' Motion to Have Requests for Admission Deemed Admitted.

Case: 25CV474504

Abioye v Chapa and Vortex Industries

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The above matter came on regularly for hearing on September 16, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding: **LINE 7: Vortex Industries Motion to Have Requests for Admission Deemed Admitted.**

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant Vortex Industries, LLC served Requests for Admission, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve responses to the Requests for Admission. Plaintiff also did not serve, before the hearing, a proposed response substantially complying with Code of Civil Procedure section 2033.220.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for Defendant.

Counsel for Defendant represents that no code-compliant responses to the Requests for Admission were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff failed to timely serve responses to the Requests for Admission.

VIII. Requests for Admission

Under Code of Civil Procedure section 2033.280, a party who fails to timely serve responses to requests for admission waives any objection to the requests, including objections based on privilege, unless the court permits the party to withdraw the waiver. Where the responding party has failed to serve a timely response, and has not served a proposed response substantially complying with section 2033.220 before the hearing, the court is required to order the matters specified in the requests deemed admitted.

Here, Plaintiff failed to timely respond to the Requests for Admission and did not serve a proposed response substantially complying with Code of Civil Procedure section 2033.220 before the hearing.

Accordingly, **Defendant Vortex Industries, LLC's Motion to Compel Responses to Requests for Admission, Set One, is GRANTED.**

The matters specified in Defendant Vortex Industries, LLC's Requests for Admission, Set One, are hereby **DEEMED ADMITTED** as to Plaintiff Adedayo Abioye.

The admissions shall have the effect provided by the California Code of Civil Procedure and shall remain binding unless withdrawn or amended pursuant to applicable law.

IX. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Admission necessitated Defendant's motion. Monetary sanctions are therefore warranted pursuant to Code of Civil Procedure section 2033.280(c).

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards based upon the full amount of time claimed for each motion would result in compensation for duplicative work. The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour** to be a reasonable amount attributable to this motion.

Accordingly, Defendant **Vortex Industries, LLC** is awarded **\$375.00** in monetary sanctions against Plaintiff **Adedayo Abioye**.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

X. Basis of Order

The Court's determination that the matters are deemed admitted is based upon Plaintiff's failure to timely respond to the Requests for Admission and the requirements of Code of Civil Procedure section 2033.280. The Court is not independently making factual findings concerning the truth of the matters admitted.

IT IS SO ORDERED.

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Calendar Line 8
Vortex Industries' Motion to Compel Responses to Form Interrogatories.
Case: 25CV474504
Abioye v Chapa and Vortex Industries

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 8: VORTEX INDUSTRIES' Motion to Compel RESPONSES TO FORM INTERROGATORIES, SET ONE

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant served the subject discovery on Plaintiff on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve code-compliant responses.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff has submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for the moving Defendant.

Counsel for Defendant represents that no code-compliant responses to the subject discovery were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff has failed to provide timely, code-compliant responses to the discovery at issue.

Accordingly, **VORTEX INDUSTRIES' Motion to Compel RESPONSES TO FORM INTERROGATORIES, SET ONE is GRANTED.**

Plaintiff is ordered to serve verified, code-compliant responses to the subject discovery, without objections to the extent objections have been waived by Plaintiff's failure to timely respond, within **[30] days** after service of notice of entry of this Order.

XI. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the discovery necessitated the filing and hearing of this motion. Monetary sanctions are therefore warranted pursuant to the applicable provisions of the Code of Civil Procedure.

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards of the full amount requested for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour**, together with any recoverable filing fee, to be a reasonable amount attributable to this motion. Accordingly, Defendant **VORTEX INDUSTRIES** is awarded **\$375.00 in monetary sanctions** against Plaintiff.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

IT IS SO ORDERED.

Calendar line 9

Chapa's Motion to Compel responses to Special Interrogatories, Set One

Case: 25CV474504

ADEDAYO ABIOYE v. CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 9: ABRAHAM CHAPA'S Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

The Court has considered the moving papers, opposition, reply, arguments of counsel, and the records and files in this action.

Defendant served the subject discovery on Plaintiff on October 10, 2025. Plaintiff's responses were due on November 12, 2025. Plaintiff did not timely serve code-compliant responses.

Plaintiff contends, among other things, that he was uncertain whether the attorneys who served the discovery were authorized to represent Defendants and that he therefore provided purported responses directly to the Defendants. Plaintiff has submitted screenshots purporting to show communications and attachments. The purported responses themselves, however, are not before the Court in a form demonstrating that code-compliant responses were served on counsel for the moving Defendant.

Counsel for Defendant represents that no code-compliant responses to the subject discovery were received.

The Court finds Plaintiff's contention that he was unaware of the identity or authority of defense counsel is not a sufficient basis for failing to serve responses as required by the Code of Civil Procedure. The Court further finds that Plaintiff has failed to provide timely, code-compliant responses to the discovery at issue.

Accordingly, **ABRAHAM CHAPA'S Motion to Compel RESPONSES TO SPECIAL INTERROGATORIES, SET ONE is GRANTED.**

Plaintiff is ordered to serve verified, code-compliant responses to the subject discovery, without objections to the extent objections have been waived by Plaintiff's failure to timely respond, within **[30] days** after service of notice of entry of this Order.

XII. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the discovery necessitated the filing and hearing of this motion. Monetary sanctions are therefore warranted pursuant to the applicable provisions of the Code of Civil Procedure.

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards of the full amount requested for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour**, together with any recoverable filing fee, to be a reasonable amount attributable to this motion. Accordingly, Defendant **ABRAHAM CHAPA** is awarded **\$375.00 in monetary sanctions** against Plaintiff.

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.
IT IS SO ORDERED.

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Calendar line 10

Chapa's Motion to Compel Responses to Request for Production of Documents

CASE: 25CV474504

ABIOYE v, CHAPA; VORTEX INDUSTRIES

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The following matter came on regularly for hearing on September 18, 2026, at 9:00 a.m. in Department 16, the Honorable Matthew S. Harris presiding:

Line 10: ABRAHAM CHAPA'S MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Defendant served Plaintiff with Requests for Production of Documents, Set One, on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve code-compliant responses to the Requests for Production. Plaintiff also has not established that he served code-compliant responses on counsel for Defendant.

Under Code of Civil Procedure section 2031.300, a party who fails to timely serve a response to a demand for inspection, copying, testing, or sampling waives any objection to the demand, including objections based on privilege or work product, unless the court, on motion, permits the responding party to assert such an objection.

The Court finds that Plaintiff has failed to timely respond to the Requests for Production and has not established good cause for permitting objections at this time. Accordingly, any objections to the Requests for Production that were waived by Plaintiff's failure to timely respond are deemed waived.

Defendant ABRAHAM CHAPA'S Motion to Compel Responses to Requests for Production of Documents, Set One, is GRANTED.

Plaintiff shall, within **30 days after service of notice of entry of this Order**, serve verified, code-compliant responses to each of the Requests for Production, without objections to the extent objections have been waived.

To the extent a response states that responsive documents or other items will be produced, Plaintiff shall produce the responsive documents, tangible things, and electronically stored information in accordance with the requirements of Code of Civil Procedure section 2031.280.

If Plaintiff asserts that no responsive documents or other items exist or are within his possession, custody, or control, his response shall so state in a manner that complies with the applicable provisions of the Code of Civil Procedure.

XIII. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Production necessitated Defendant's motion. Monetary sanctions are therefore warranted pursuant to Code of Civil Procedure section 2031.300(c).

The Court has considered the amount of attorney time claimed and the fact that the discovery motions brought by the parties arise from substantially the same circumstances and were prepared and heard together. The Court finds that separate awards based upon the full amount of time claimed for each motion would result in compensation for duplicative work.

The Court therefore finds **one hour of attorney time at the requested rate of \$375 per hour** to be a reasonable amount attributable to this motion.

Accordingly, Defendant **ABRAHAM CHAPA** is awarded **\$375.00 in monetary sanctions against Plaintiff Adedayo Abioye.**

Plaintiff shall pay the sanctions in the amount of **\$375.00** to Defendant's counsel within 30 days after service of notice of entry of this Order.

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Calendar line 11
Plaintiff's Motion to Vacate
Case Number: 22CV404562
Miletak v. Manpower Group US, Inc.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

The Court, having considered Plaintiff's Motion to Vacate Judgment, Plaintiff's Amended Motion to Vacate Judgment, Defendant's opposition thereto, the record in this action, and the arguments presented, hereby ORDERS as follows:

XIV. Procedural History

On August 28, 2023, the Court entered an order sustaining Defendant's Motion to Strike Plaintiff's First Amended Complaint in its entirety. Plaintiff appealed that judgment on September 15, 2023. Plaintiff thereafter requested dismissal of his appeal, and that request was granted on October 16, 2024.

On December 5, 2024, the Court dismissed Plaintiff's claims with prejudice and ordered Plaintiff to pay Defendant's costs.

Plaintiff thereafter filed his Motion to Vacate Judgment on September 11, 2025. Plaintiff filed his Amended Motion to Vacate Judgment on March 27, 2026.

XV. The Motion Is Untimely Under the Applicable Statutory Provisions

The Court finds that Plaintiff's motions were not brought within the applicable statutory periods.

Code of Civil Procedure section 663a provides a limited period in which a motion to vacate a judgment may be made. Plaintiff did not file his first Motion to Vacate until September 11, 2025, more than nine months after the December 5, 2024 judgment. His Amended Motion to Vacate was filed March 27, 2026, more than fifteen months after entry of judgment.

To the extent Plaintiff seeks relief under Code of Civil Procedure section 473(b), the Court likewise finds that the statutory requirements have not been satisfied.

The Court therefore finds that Plaintiff's requests for statutory relief were not timely made.

XVI. Plaintiff's Motion Is Also Barred by the Time Limits Governing an Appeal

Plaintiff previously appealed the Court's August 28, 2023 order. The appeal was subsequently dismissed at Plaintiff's request on October 16, 2024.

California Rules of Court, rule 8.104 establishes the time within which a notice of appeal must be filed. Plaintiff cannot use a later motion to vacate to circumvent the applicable time limits for appellate review of the underlying order.

The Court therefore finds no basis under rule 8.104 for granting the present motion.

XVII. Code of Civil Procedure Section 473 Does Not Provide a Basis for Relief

Plaintiff also invokes Code of Civil Procedure section 473. The Court finds that section 473 does not provide a basis for the relief requested.

Plaintiff did not seek relief within the applicable six-month period following entry of the December 5, 2024 judgment. In addition, the facts presented do not establish a basis for relief under the mandatory or discretionary provisions of section 473 that would permit the Court to disregard the applicable statutory time limits.

Accordingly, relief under Code of Civil Procedure section 473 is denied.

XVIII. Res Judicata

The Court further finds that Plaintiff's claims for relief are barred by principles of claim preclusion.

The matters Plaintiff seeks to have revisited arise from the same underlying action and proceedings that resulted in the prior orders and final judgment. Plaintiff had the opportunity to litigate those matters and to seek appellate review. He in fact pursued an appeal and thereafter voluntarily dismissed it.

The present motion does not provide a basis for relitigating matters that have already been finally determined. Accordingly, to the extent Plaintiff's motion seeks to relitigate claims or issues previously determined in this action, relief is barred by res judicata and related principles of finality.

XIX. Plaintiff Had an Opportunity to Pursue Appellate Review

The Court further finds that Plaintiff was not deprived of an opportunity to seek appellate review.

Plaintiff filed an appeal from the August 28, 2023 order. He thereafter voluntarily requested dismissal of that appeal, and the request was granted on October 16, 2024. The Court does not find that Plaintiff was prevented from pursuing appellate review by any circumstance outside his control. Rather, the record before the Court establishes that Plaintiff elected to dismiss the appeal that he had filed. The subsequent expiration of the applicable periods for seeking appellate review cannot be avoided by treating Plaintiff's later motion to vacate as a substitute for the appellate review that he elected not to pursue.

XX. No Equitable Basis Has Been Established

The Court has considered Plaintiff's request for equitable relief notwithstanding the applicable statutory time limits.

The circumstances presented here do not establish a basis for exercising such equitable authority.

Plaintiff had the opportunity to litigate his claims in this action. The Court sustained Defendant's demurrers, Plaintiff amended his pleading, Defendant's subsequent motion to strike was sustained, Plaintiff filed an appeal, and Plaintiff thereafter voluntarily dismissed that appeal. Following entry of the December 5, 2024 judgment, Plaintiff did not file his first motion to vacate until September 11, 2025.

The Court finds that these circumstances do not establish that Plaintiff was denied an opportunity to present his position or to seek appellate review. Nor has Plaintiff established circumstances warranting an equitable departure from the applicable statutory time periods.

The Court therefore declines to exercise its equitable authority to reopen the judgment.

XXI. Finality of the Judgment

The Court finds that the December 5, 2024 judgment is final and that Plaintiff may not use an untimely motion to vacate to obtain further review of issues that he had an opportunity to litigate and to pursue on appeal.

The Court has considered Plaintiff's arguments concerning subsequent appellate decisions. Those arguments do not provide a basis, on the facts presented, for reopening the final judgment after the expiration of the applicable statutory periods and after Plaintiff voluntarily dismissed his appeal.

XXII. Disposition

Accordingly, Plaintiff's **Motion to Vacate Judgment** and **Amended Motion to Vacate Judgment** are **DENIED**.

The December 5, 2024 judgment remains in full force and effect.

IT IS SO ORDERED.

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Calendar line 12

Case Number: 23CV416455

Case Name: N. Charles Podaras vs Valerie Weirauch et al

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Pursuant to Code of Civil Procedure section 473(a)(1), Plaintiff moves for leave to file a second amended complaint ("SAC") on the grounds that "the SAC clarifies existing claims and adds closely related causes of action arising from the same transactions already pled; no party will suffer prejudice; and the amendment is in furtherance of justice." (Notice 1:24-26)

The Motion came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations & Procedural Background

Plaintiff alleges that pursuant to an oral agreement with Defendant Weirauch in early 2019, he moved into her home at 2402 Le Bain Drive, in San Jose ("Property"). In exchange he agreed to take care of the house and Weirauch's two dogs. (First Amended Complaint ("FAC"), Factual Allegations ¶¶ 2, 3)

Between April 28, 2022, and May 14, 2022, Weirauch took actions to remove Plaintiff from the Property, including multiple verbal and written demands, threats to call law enforcement, and termination of WiFi access and hot water pressure. (*Id.* ¶¶ 4-12).

On May 23, 2022, Plaintiff received notice of Weirauch's Civil Harassment Restraining Order/Temporary Restraining Order ("CHRO/TRO") legal proceeding against him. He discovered he was no longer allowed back in the home where his belongings were, including medication and medical devices. On October 25, 2022, the CHRO was denied and the TRO was lifted. Plaintiff was informed that his belongings were packed up in Weirauch's garage without Plaintiff's permission. (*Id.* ¶¶ 14, 15, 23, 25, 26.)

On November 18, 2022, Plaintiff visited the Property on an arranged appointment to get his belongings but was denied entry. On December 30, 2022, Plaintiff requested San Jose Police escort him to the Property to retrieve belongings. (*Id.* ¶¶ 29, 31.)

Plaintiff initiated this action on May 22, 2023, and subsequently amended his complaint on January 10, 2024. Plaintiff's FAC consists of two parts. First, the FAC includes Form PLD-PI-001 and checks two causes of action for general negligence and intentional tort. (FAC: Form Complaint.) The general negligence claim includes form attachment stating additional facts, but the intentional tort claim does not include any attachments. Second, the FAC also includes "Factual Allegations" on separate pleading paper and elaborates on the events giving rise to this action. (FAC: Factual Allegations.)

After listing the relevant facts the FAC indicates "THIS IS INCOMPLETE TO BE PROVIDED" but goes on to state three separate counts. (FAC, Factual Allegations at p. 7:6-7.) Count 1 conflates three causes of action together: "violation of § 789.3," trespass to chattels, and conversion. (*Id.* at p. 7:8-15.) Count 2 is for "violation of § 1940.2 harassment: interference with

quiet enjoyment," and Count 3 is for "violation of § 1942.5 harassment: no harassing after tenant has asserted rights under law." (*Id.* at p. 7: 16-24.)

On July 8, 2024, the Court sustained Vickrey's and Dyslin's demurrer to the FAC without leave to amend and dismissed the action against them. On June 20, 2025, the Court sustained, in part, Weirauch's demurrer to the FAC with leave to amend his claim for intentional tort and counts 2 and 3 within 20 days commencing April 9, 2025. Plaintiff did not file an amended pleading in the allotted time. Instead, approximately five months later, Plaintiff filed his motion for leave to file a second amended complaint.

II. Legal Standard

Under the California Rules of Court 3.1324, a motion to amend a pleading must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments, and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (Cal. Rules of Court, rule 3.1324(a).) The motion must also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

California appellate precedent instructs that "Courts must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown." (*Duchrow v. Forrest* (2013) 215 Cal. App. 4th 1359, 1377 (citing *P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345).) In this context, prejudice exists where the amendment would result in a delay of trial, added costs of preparation, and increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 468-488; see also *P&D Consultants Inc., supra*, 190 Cal. App. 4th at 1345 ("even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.")) (leave to amend properly denied where Plaintiff knew for over five months claims had not been properly pleaded and took no action to amend until after summary judgment granted against it.)

Regarding permitting amendments to the pleadings during trial, Code of Civil Procedure Section 469 authorizes the Court to allow pleadings to be amended to conform to proof at trial: "Variance between the allegations in a pleading and the proof shall not be 14 deemed material, unless it has actually misled the adverse party to his or her prejudice in maintaining his or her action or defense upon the merits. If it appears that a party has been so misled, the court may order the pleading to be amended, upon such terms as may be just. (Code. Civ. Proc. § 469.)

As explained by our California Supreme Court:

[T]he allowance of amendments to conform to the proof rests largely in the discretion of the trial court and its determination will not be disturbed on appeal unless it clearly appears that such discretion has been abused. . . .

Such amendments have been allowed with great liberality 'and no abuse of discretion is shown *unless by permitting the amendment new and substantially different issues are introduced in the case or the rights of adverse party prejudiced.* . . .'

(*Trafton v. Youngblood* (1968) 69 Cal. 2d 17, 31 (quoting *McNamara v. Steckman*, (1927) 202 Cal. 569, 572 (emphasis added by *Trafton*)).

III. Analysis

While this Court routinely grants motions for leave to amend in accordance with the general liberal amendment policy of California law, in this case and under these circumstances the Court DENIES, WITHOUT PREJUDICE, the motion for failure to comply with California

Rule of Court, rule 3.1324(a) and (b).

First, Plaintiff's motion was originally accompanied by a sperate Exhibit List that consisting of his second amended complaint. (Exhibit A) The clerk's office erroneously filed the second amended complaint. Consequently, the Court ordered the second amended complaint to be stricken and directed Plaintiff to "resubmit the document with a cover sheet indicating the document as a Proposed Amended Complaint." (Minute Order, September 17, 2025) Plaintiff has failed to resubmit his proposed second amended complaint and thus, as it stands, his motion is not accompanied by an amended pleading.

Second, neither the motion nor the supporting declaration of James L. Arrasmith specify what allegations in the FAC are proposed to be deleted or added, and where - by page, paragraph, and line number - the allegations are located. Instead, James Arrasmith vaguely declares:

What is being amended: The SAC clarifies factual allegations and pleads the following causes of action: (1) Wrongful Eviction/Lockout (Civ. Code § 789.3); (2) Conversion; (3) Trespass to Chattels; (4) Intentional Infliction of Emotional Distress; (5) Elder Financial Abuse (Welf. & Inst. Code § 15610.30 et seq.); (6) Unfair Competition (Bus. & Prof. Code § 17200); and (7) Civil Conspiracy (liability theory). No new parties are added. (Decl. James L. Arrasmith ¶ 3)

Third, neither the motion nor the supporting declaration of James L. Arrasmith inform the Court as to why the amendment is necessary, what facts give rise to the amended and added causes of action, when were these facts discovered, and why the request for amendment was not made earlier. Plaintiff's original complaint was filed on May 22, 2023, and his first amended complaint was filed on January 10, 2024. Plaintiff does not detail his reason for seeking to amend his pleading again after two years. Instead, Mr. Arrasmith vaguely and improperly declares that "[t]he proposed claims conform the pleadings to facts already disclosed in the record and provide a clearer remedial frameworks." (Decl. James L. Arrasmith ¶ 5)

IV. Conclusion & Order

Accordingly, Plaintiff's Motion for Leave to File a Second Amended Complaint is DENIED WITHOUT PREJUDICE.

SO ORDERED.